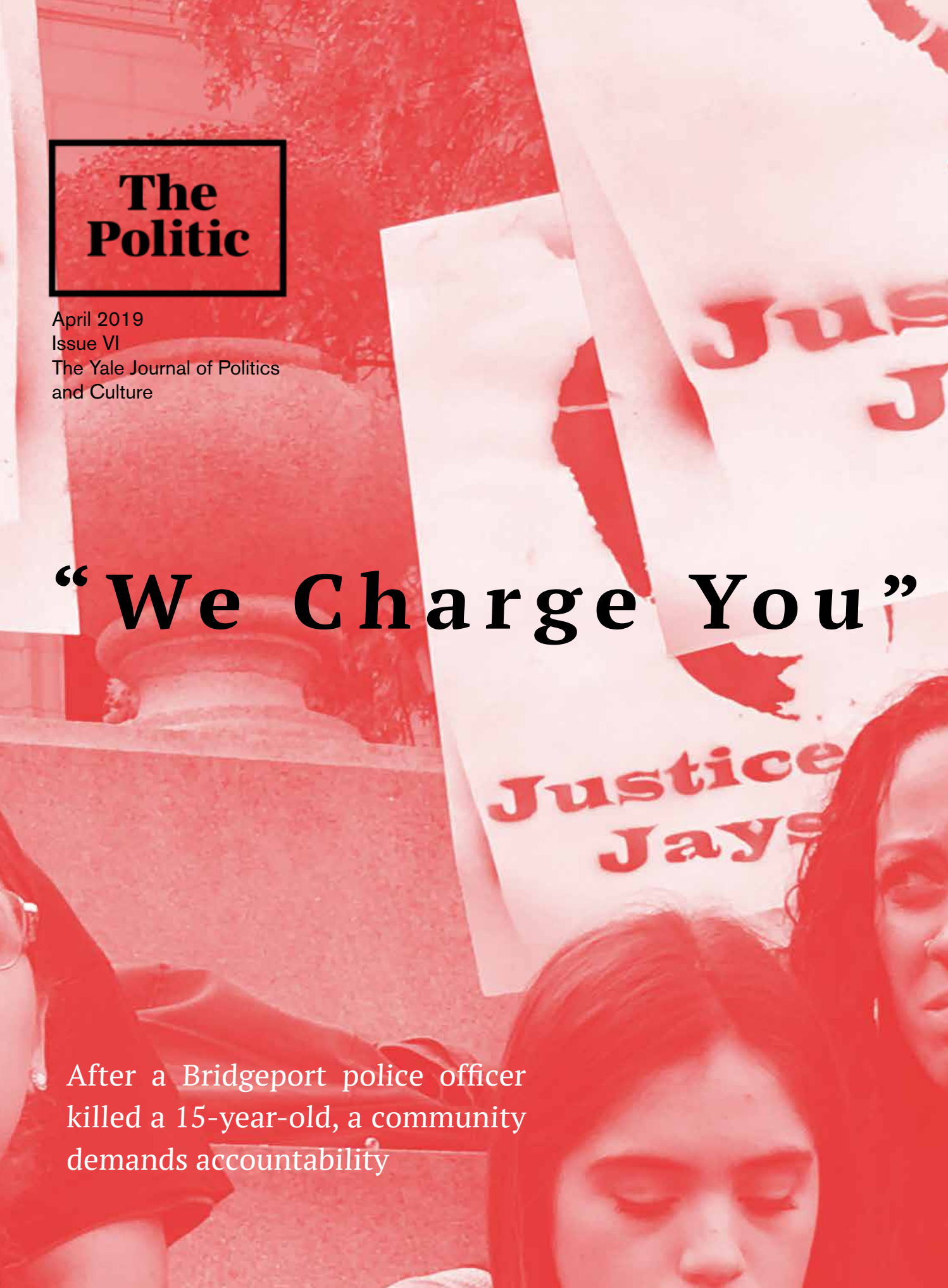


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"We Charge You"

After a Bridgeport police officer killed a 15-year-old, a community demands accountability

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Fighting to Serve

TRANSGENDER MILITARY SERVICE AND THE TRUMP ADMINISTRATION

BY **GABRIEL KLAPHOLZ**

ON JUNE 30, 2016, Lieutenant Colonel Bryan Bree Fram, who goes by "B," sat in their Pentagon office watching then-Secretary of Defense Ash Carter deliver a speech just downstairs on television. Carter was announcing an end to the ban on transgender people serving in the U.S. military. For B, an active duty astronautical engineer who identifies as nonbinary, that day would be the last of 13 years of service in the closet.

"I had a Facebook post and an email to all my colleagues ready to go for when [Carter] finished speaking. I hesitated. 'Do I do this? Do I do this?' I asked myself. And of course, I did."

After so many years serving with the knowledge that they could lose their career at a moment's notice if anyone discovered their gender identity, B remained anxious. As soon as they came out online, B went down to the Pentagon gym to work off the nervous energy.

"I probably burned the motor out on the elliptical machine," they said.

When B returned to their desk, they were thrilled to find immense support from family, friends, and colleagues both online and in person. Before the ban was lifted, B had already been involved in SPART*A, an advocacy and support group for transgender service members and veterans. Instead of facing what a week earlier would have been near-certain discharge, one week after the rule change, B received a promotion within the military. They now also serves as SPART*A's communications director.

But one year later, in July 2017, President Trump undermined the new security B felt in their job with a succession of three tweets. The president wrote that the U.S. "will not accept or allow Transgender individuals to serve in any capacity in the U.S. military," citing the "tremendous medical costs and disruption" associated with transgender service.

"They're basically saying we're simply ineligible to serve because of who we are," said B, referring to the Trump administration.

In response to inquiries from *The Politic* about the ban, the Department of Justice sent a copy of an earlier statement from January 2019: "The Department of Defense has the authority to create and implement personnel policies it has determined are necessary to best defend our nation." The statement said that the Obama-era policy—commonly termed the "Carter policy" after then-Secretary of Defense—"poses a risk to military effectiveness and lethality."

Trump's tweets and two ensuing policy memorandums outlining a proposed ban—one from the president, one from the Department of Defense—have fueled a nationwide legal battle that still rages on today. At the heart of the debate are four lawsuits against the Trump administration's policy, which LGBTQ+ advocates argue is discriminatory and unconstitutional. Despite the ongoing litigation, his administration's policy went into effect on April 12, 2019.

Service in the American military has long marked the position of marginalized groups in American society. Since the Civil War, wave after wave of people previously denied the right to serve—including African Americans, women, and immigrants—have demanded access to the institution. Indeed, the fight over transgender service in the U.S. military calls into question not only the very definition of "transgender" but also the future of LGBTQ+ rights in the U.S.

THE FIGHT OVER TRANSGENDER SERVICE IN THE U.S. MILITARY CALLS INTO QUESTION NOT ONLY THE VERY DEFINITION OF "TRANSGENDER," BUT ALSO THE FUTURE OF LGBTQ+ RIGHTS IN THE U.S.

TRUMP'S TWEETS LEFT an estimated 10,790 transgender service members unsure of what to do next. Attorneys and activists in LGBTQ+ organizations were equally at a loss.

"Our first response was: 'Is this policy? Does a tweet count as a policy?'" said Carl Charles, a staff attorney at Lambda Legal, a national legal organization dedicated to advocat-

ing for LGBTQ+ rights. Because of the ambiguous role of social media in the Trump era, the organization ultimately concluded that it should treat Trump's tweets, much like those announcing his "Muslim ban" in 2017, as potential policy—and that the new ban needed to be challenged.

In early August 2017, the National Center for Lesbian Rights (NCLR) and GLBTQ Advocates and Defenders (GLAD) filed the first of four lawsuits against the Trump administration. The suit, called *Doe v. Trump*, challenged the constitutionality of the policy expressed in Trump's tweets and the short memorandum that followed, which called on the Department of Defense to conduct a study on transgender military service.

Later that month, the American Civil Liberties Union filed the second case, *Stone v. Trump*, on the same day that Lambda Legal and OutServe-SLDN filed the third case, *Karnoski v. Trump*, which Charles is still working on today. By October, NCLR, GLAD, and Equality California had filed the fourth case, *Stockman v. Trump*.

In federal district courts across the country, all four cases resulted in preliminary injunctions to halt the policy from taking effect while the cases were being heard in court.

In March 2018, the president accepted a new 44-page plan issued by Secretary of Defense James Mattis regarding transgender service in the military. According to the Trump administration, the new proposal revoked the transgender ban as stated in its first memorandum that followed his tweets. According to advocates, little has changed.

"The government began to argue that this new policy was different from the one declared under Trump's tweets," said Charles. According to him, the Trump administration used this claim as grounds to challenge the preliminary injunctions that were issued.

The Mattis plan provides a grandfather clause for current transgender service members who relied on the June 2016 Carter policy to transition medically or socially and thus secures their treatments for diagnosed gender dysphoria and allows them to remain in the military.

Under the Mattis plan, however, any transgender service member will be disqualified from military service if they begin transitioning after its implementation. Moreover, no transgender person who has begun transitioning will be allowed to join the military. The policy states, "Service members diagnosed with gender dysphoria may be retained [only] if they do not require a change of gender."

For Charles and other advocates, this provision amounts to an effective "blanket ban" of transgender service members. "The nature of being trans is that you can't live and work in your sex assigned at birth. That is the fundamental definition," he said. Thus, the Mattis plan is no different from the original plan Trump proposed, said Charles: "It's the same exclusion."

Jennifer Levi, one of the lead attorneys in *Doe* and *Stockman* and Director of the Transgender Rights Project at GLAD, echoed Charles, calling the administration's position "Orwellian."

The administration, she explained, claims that "it is not a blanket ban on transgender service because it doesn't preclude people who have a gender identity that is different from their birth sex." The problem, said Levi, is that the policy "does prevent people from serving who live [in a way that is] consistent with that identity."

Levi equated the government's argument to a similar one made in favor of the "Don't Ask, Don't Tell" policy. In that case, "The military said it would allow gay people to serve as long as they didn't act in accordance with that identity," she said.

In January of this year, in a five-

"OUR FIRST RESPONSE WAS: 'IS THIS POLICY? DOES A TWEET COUNT AS A POLICY?'"

four ruling, the Supreme Court lifted two of the four preliminary injunctions. In March, a Maryland federal judge lifted the injunction in *Stone*, and later that month, a Washington D.C. federal appeals court did the same for *Doe*.

IN SPITE OF ALL the legal acrobatics, the courts will one day have to decide on the merits of the ban as a policy, not just on the merits of the preliminary injunctions. At that point, legal arguments against the ban itself will become crucial for its opponents.

Aaron Belkin is a political science professor at San Francisco State University and the founder of the Palm Center, a think tank that focuses on public policy issues relating to sexual minorities in the military. Belkin argues that the ban inhibits military efficacy.

"The preponderance of evidence shows that inclusive policy for [transgender] people promotes military readiness," he said. The ban would exclude thousands of potential service members from contributing to military operations.

According to the conclusions of a 71-page RAND Corporation study commissioned by the Department of Defense under the Obama administration, transgender service in the U.S. military would place an "exceedingly small" burden on the army's healthcare spending and have a "minimal impact" on readiness.

The amicus brief submitted by Yale Law School's Rule of Law Clinic for the *Doe* case draws a contrast between the Obama-era policy and Trump's current proposal: the Obama administration commissioned the RAND study before announcing its policy change on transgender service; the Trump administration, however, sought to eliminate the Obama policy in a series of tweets without providing supporting data from any federally commissioned study and without consulting the military in advance.

"President Trump announced his policy and only *then* commissioned a study. It's the cart before the horse," explained Charles.

Transgender advocates are also challenging the constitutionality of the Mattis plan under the Fifth and Fourteenth Amendments, invoking both the Due Process Clause and the Equal Protection Clause.

"Because the government had allowed trans people to serve under the Obama administration, it's a violation of due process to just take that away from them," said Ryan Thoreson, a clinical lecturer at Yale Law School and a researcher at Human Rights Watch on LGBTQ+ issues.

Regarding the Equal Protection Clause, "the concern is that this is discrimination on the basis of gender," explained Thoreson. According to him, advocates for transgender military personnel actually have "stronger footing" than did those opposing "Don't Ask, Don't Tell" in the 2010s. In the case of "Don't Ask, Don't Tell," an argument needed to be made for non-discrimination on the basis of sexual orientation, which Thoreson said has even less legal protection than gender identity under the Constitution.

The Trump administration has cited high medical costs as a reason for the ban. But data from the Defense Department submitted to the House Armed Services Committee shows that the military has spent around $8 million on healthcare for transgender soldiers since 2016 out of a $50 billion healthcare budget. The figure amounts to about 0.016 percent of total spending on medical costs.

ACCORDING TO CYNTHIA ENLOE, feminist writer, theorist, and professor at Clarke University, widely known for her work on gender in the military, the current legal dispute about transgender military service is a modern iteration of a debate that has existed in the United States since the mid-19th century, when African-American men wanted to serve in the Civil War.

"The transgender rights suits that are coming up in courts really are the next phase in the ongoing question of who should serve in the U.S. military," said Enloe.

Belkin argued that the United States has always possessed a deeply rooted mythology that "male whiteness in the military was necessary for preserving American national security and the safety of American homes." For this reason, Belkin said, American soldiering has always been tied to "cisgender, straight, white, male normativity, and privilege."

"Each community has stepped up to the plate and said, we don't want to be excluded from this imagination," explained Belkin, referring to the movements by African Americans, women, immigrants, gays and lesbians, and now transgender people demanding a place in the military.

Enloe detailed the degree to which women and black Americans in particular were systematically excluded from military service. In World War I, American black men were attached to French military units because the then-all-white U.S. Department of War (which no longer exists) thought the French, with their history of colonial expansion in Africa, would know how to "handle" black soldiers.

Referring to the World War I era, she said, "African-American men were not trained with guns. They had to train with broomsticks in Central Park," because white segregationist senators feared African-American men using live weapons.

Until the mid-1970s, said Enloe, there was a ban within each branch of the military on having women make up more than two percent of its members.

"The two percent rule is the reason why, if you go to the Vietnam War Memorial, one of things you notice is how few women are on the wall. That's not because women don't fight wars—that's because Congress had imposed a two percent limit," said Enloe.

Harold Hongju Koh, Sterling Professor of International Law at Yale Law School, former Dean of Yale Law

School, and former Legal Adviser of the U.S. Department of State, said that historically speaking, the U.S. is unique among developed countries—particularly compared to those in Europe—in its slowness to accept transgender people into the armed forces. Koh helped found the Rule of Law Clinic at Yale Law School, the same clinic that submitted supporting evidence in *Doe v. Trump*.

Koh recounted a meeting he had in 2010, while working at the State Department with legal advisers from around the world, when the Obama administration was beginning to consider ending the "Don't Ask, Don't Tell" policy.

"THE TRANSGENDER RIGHTS SUITS THAT ARE COMING UP IN COURTS REALLY ARE THE NEXT PHASE IN THE ONGOING QUESTION OF WHO SHOULD SERVE IN THE U.S. MILITARY."

"There was a moment when a U.S. military official asked a German legal adviser, 'Aren't you worried about unit cohesion?'" said Koh. "The German legal adviser laughed and said, 'American soldiers have been serving with gay Germans in NATO units since 1969, and there have been no problems.'"

Indeed, other countries around the globe have moved far faster than the U.S. in allowing LGBTQ+ people to serve in the military. "Trans rights have been adjudicated by the European Court of Human Rights in Strasbourg for decades," said Koh.

The Netherlands was the first country to allow transgender service in 1974. Today, 18 countries have granted transgender people the right to serve.

WHETHER THE SUPREME COURT will ultimately rule in favor of transgender service members is unclear, and some activists think that congressional legislation—as opposed to court rulings—should be the primary avenue for protecting transgender service members.

"That was how 'Don't Ask, Don't Tell' was reversed, too. It was Congress that ultimately stepped in and got the ball rolling," said Thoreson.

Earlier this year, Senator Kirsten Gillibrand (D-NY) introduced legislation that would allow transgender service. Senators Jack Reed (D-RI) and Susan Collins (R-ME) also sponsored the bill. Meanwhile, Representatives Jackie Speier (D-CA), Joseph Kennedy III (D-MA), John Katko (R-NY), Susan David (D-CA), and Anthony Brown (D-MD) introduced legislation in the House. Scholars like Thoreson remain skeptical that the legislation will ever come to a vote in the current Senate.

No matter how the transgender ban is stopped, immediate action is necessary, warned Koh.

"[The policy] can certainly embolden state and local authorities who will say: why should someone be allowed to serve in the local police force if they're not allowed to serve in the military? There's a copycat effect. If it's good enough for the U.S. military, it's good enough for us, they'll say," he explained.

But Mara Keisling, founder and executive director of the National Center for Transgender Equality, still has hope. "We're going to keep fighting. We're going to keep shining a light on trans service members who can certainly speak for themselves," she said.

And speak for themselves they do. B remains an active Air Force officer committed to the same ideals they were committed to when they joined the armed forces.

"The oath that I swear is to the U.S. Constitution," they said. "I truly care about the ideals that are embedded in that document.... We were founded to always strive to achieve great things and for a more perfect union. I am going to try to do that every day."

ABSENT BY DESIGN

FIFTY-FIVE YEARS OF RACIAL EXCLUSION AT THE YALE SCHOOL OF ARCHITECTURE

BY **RASMUS SCHLÜTTER AND IRENE VÁZQUEZ**

FROM THE OUTSIDE, the Yale School of Architecture has remained unchanged for its 55-year existence. Beyond its renaming from the Art and Architecture Building to Rudolph Hall and the addition of the Jeffrey Loria Center in 2008, the same vortex—of broken planes and concrete slabs, of orange carpets and frantic students visible behind the ribbon windows—has loomed over the corner of York and Chapel. It has become the image of excellence: for the past ten years, DesignIntelligence's architecture magazine has consistently ranked the Yale School of Architecture (YSoA) graduate program among the top five in the country.

However, the School has a history of turbulence that belies its staid exterior. In 1969, following a controversial university decision to close the school's progressive and racially inclusive Department of City Planning, a fire tore through the Art and Architecture Building, destroying two floors. The administration frequently hinted that students were responsible for the fire but never came forth with concrete allegations.

In March 2019, YSoA announced the creation of an urban studies major for undergraduates. Undergraduates were excited, as well as surprised—the new major is one of the most significant changes to the School since the introduction of the undergraduate architecture major in 1965.

Much of the excitement surrounding the new urban studies major has to do with its interdisciplinary nature and the history of urban studies discourse about space, race, gender, and power. Previously, urban studies was only available as a concentration in the Architecture, American Studies, and Political Science majora. The new major will incorporate pedagogy from these separate disciplines.

"One of the great riches of Yale is the interdisciplinary opportunities," Deborah Berke, Dean of the Yale School of Architecture, told *The Politic* in reference to the new undergraduate urban studies major. "I see this as only further enhancing interdisciplinary studies at Yale, and that it will look good in a few years, and it will look even better years after."

Urban studies also has the opportunity to address the 55-year history of exclusion of race from the architecture curriculum that has followed since the closure of City Planning. The YSoA's consistent lack of diversity is just as much a part of its identity as are its paprika carpets and brutalist exterior. Of the 103 faculty listed on the YSoA website, there are three Black instructors. In the 2018-2019 school year, the School has offered classes on Roman, Islamic, and European Gothic architecture, the Bauhaus, and Chinese gardens, but none highlight the architecture and architectural histories of Black people. None of the current Black faculty have permanent professorships at the school, and the school has never been led by a Black dean.

There were, however, calls for change and efforts at interdisciplinary study over 50 years ago. The Department of City Planning, in coordination with student-led groups, fostered discussions about race, power, and architecture. Granted departmental status in 1960, City Planning offered undergraduate and graduate degrees in city planning, as well as a joint degree with the Yale Law School in urban studies. With the appointment of advocacy-oriented department chair Christopher Tunnard in 1966, student calls for faculty diversity and curriculum changes increased. Three years later, the City Planning Forum, composed of students and faculty from the department, voted to admit a class of 50 percent students of color and sent out letters of acceptance to students without the approval of the Howard Weaver, Dean of the School of Art and Architecture. This protest would eventually be the Forum's downfall.

In May 1969, as students were admitted to the program, tensions mounted: the university announced its plans to close the City Planning Department, asked for Tunnard's resignation from his chairmanship, and informed the accepted students that their admissions letters were incorrectly sent. In 1971, the Department of City Planning officially closed. The next year, Yale designated

the School of Architecture as its own professional school separate from the School of Art.

"I Have No Place in This Place."

"IT WAS THIS REAL SLAP in the face," Jennifer Newsom '01 BA, '05 M.Arch told *The Politic*. She described a visual thinking class during her first semester at the Yale School of Architecture: "[The professor] started saying, 'There is no such thing as Black architecture, there is no such thing as Chinese architecture.' Literally the whole class was stunned, and I'm sitting there like, 'Okay, I am internalizing this; I am sitting in the room.'"

Newsom had dreams of becoming an architect since the age of eight. Today, she is accomplished in the field as the partner and co-founder of the award-winning firm Dream the Combine in Minneapolis. She is among the 0.3 percent of licensed architects in the U.S. who are Black women. Newsom credits Yale for helping develop her own understanding of and approach to architecture.

"I think of my undergraduate experience as being this really positive, incredible opportunity to be exposed to all these other disciplines that come to bear on architecture," Newsom told *The Politic*. "I took classes in African-American literature; I took classes in African-American theater and performance studies; I took sociology classes. I took classes in all these other arenas that folded into how I thought about architecture, and I think that was really important."

But it took extra effort for her to reap the benefits of the program that her white peers did. "In my first class with this [professor], they're telling me that even though I'm in the room, they don't see me," she explained. "It's as though I'm invisible; it's as though I have no history; it's as though I have no place in this place."

Newsom recalls taking only one architecture class with a Black professor, and meeting two additional Black faculty members during her seven years at Yale. Following this experience, she decided to create a space for conversations about race and architecture in YSoA. In 2004, she organized one of the school's largest symposiums in recent decades, *Black Boxes: Enigmas of Space and Race*, with the goal of making conversations about race inherent in discussions about architecture. This was not the first time that an architecture student had tried to bring these discussions to the forefront: in 1991, YSoA student J.C. Calderón hosted an event called *People of Color in Architecture* with similar hopes to those Newsom had in 2004.

"I wanted the school to be better. I wanted other people like me to be a part of the program," Calderón told *The Politic*. "Architecture can be a tool of the oppressors, or it can be a tool of the liberators. It's all about your intention."

"The goal of *Black Boxes* is not to validate one opinion or put forth an ideological stance," Newsom wrote in *Metropolis*, a design magazine. "It is simply to speak, reveal, and contribute verbally and openly." Even with financial support for *Black Boxes* from YSoA Dean Robert Stern and a fellowship



Perspecta 29: Into the Fire, published 1998. Printed with permission from the Yale School of Architecture.

to conduct independent research, Newsom felt an absence of discussions about race and architecture in the School.

"There were plenty of people I could talk to in African American Studies or other departments, but were there architecture professors who could engage deeply in these conversations [about race and power]? No," Newsom told *The Politic*. "Or if there were, they weren't reaching out to me about it."

"It's not Yale's fault, but it's a system."

IN 1969, AMONG THE STUDENT groups advocating for the new 50 percent people of color admissions policy was the Black Workshop, founded in 1968 for Black students to collaborate on urban design and community advocacy projects in New Haven. Black students, inspired by Black liberation movements, felt they did not have a space on campus where they could enact change, and so they built their own. Richard Dozier '70 M.Arch, the first Dean of the Robert R. Taylor School of Architecture at Tuskegee University, was one of the founding members of the Black Workshop and the student-director from 1968-1969. He remains one of the most prominent scholars of the history of African-American architects.

During the '60s, federally-supported urban renewal projects, led predominantly by white city planning and management teams, tore down entire neighborhoods without consulting the communities—majority people of color and low-income people—within them. In 1968, Whitney Young, the head of the civil rights organization Urban League, spoke at a conference of the American Institute of Architects. "The AIA, in the area of civil rights, is most widely known by its thunderous silence," he said. To challenge the status quo of harmful urban renewal, the Workshop employed an open-ended, inclusive urban studies approach that drew from architecture, economics, urban design, and art, among other fields.

"We all had the same kind of needed skills, and we thought we could make a bigger impact on the city and do more for the community," Dozier told *The Politic*.

Dozier helped organize the Workshop to get its own offices outside of the Architecture School. He also advocated for it to operate as an associated program that would be part of YSoA but would have flexibility to run projects on its own. In the few histories written about the Black Workshop, including Dean Emeritus Robert A.M. Stern's book *Pedagogy and Place: 100 Years of Architecture Education at Yale*, this move is often framed as separatist. But for Dozier, that was never the motivation: it was the question of belonging, of being one of a handful of Black students in an overwhelmingly white space, that the Workshop attempted to address as best as it could while remaining connected to the YSoA.

The administration was slow to respond to calls for

"THE YSOA'S CONSISTENT LACK OF DIVERSITY IS JUST AS A MUCH PART OF ITS IDENTITY AS ITS PAPRIKA CARPETS AND BRUTALIST EXTERIOR."



Perspecta 29: Into the Fire, published 1998. Printed with permission from the Yale School of Architecture.

support and increased diversity within the School. Dozier recounts meeting repeatedly with administrators at the Faculty of Arts and Sciences to get funding for the Workshop. Support among the School of Architecture and City Planning was generally strong, but caught between the bureaucratic structure of Yale and fears of campus radicalism, the Workshop encountered hurdle after hurdle.

"Getting that understanding and having that dialogue is very difficult. Not having faculty members that share your experience makes it even more difficult. Then with no role models for the students, it becomes an impasse. You can't blame Yale. It's not just Yale's fault, but it's a system."

Finally, the group met with Kingman Brewster and the Yale Corporation.

"The university, a tactic they used, had two or three things on the agenda [before addressing us], so some people would always have to go before it was over. So this one meeting, we decided to turn that around: the first thing we were going to deal with was our needs. We brought some people from the Hill and from Dixwell [two predominantly low-income neighborhoods of color]… And this guy from New York took the Provost's papers and threw them out the window. Of course, then a street-clothes police officer comes and drags him out. But we got funded after that."

After that meeting, the Black Workshop maintained its strong relationship with New Haven. And if the University had yet to fully support the group's venture, it was no longer resisting it as actively.

Professor Kent Bloomer, the longest serving faculty member at the YSoA, recalls the faculty sentiment of the 1960s.

"[The Black Workshop] was talking to communities directly. But they were talking with people who didn't see exactly why it was important, and that might have included myself," Bloomer said.

However, the importance of these issues for students like Dozier was personal.

"I was active in the Dwight community. I saw these people; I knew these people. When the Panthers came to New Haven, they used that area for their headquarters. We were not removed—that's what we kept telling the university. This is not a game; I'm really here."

Simultaneously, the events of the Civil Rights Movements had raised the personal stakes of the

members of the Workshop, tying them to a moment of immense political and social change.

"All this stuff is going on around you, all the struggles and assassinations, everything. But the biggest thing is you're here in New Haven; you've left everything—I had left Detroit. And hey, we've got to work this out. Winning that argument and getting the funding for the workshop relieved everybody."

Now, the Workshop had greater stability, increased funding, and a workspace across from the Art and Architecture Building. They ran projects in the Hill, Newhallville, and Dwight neighborhoods, bringing their skills and education to create the environments these communities wanted. Many of their projects were not about buildings at all, but about supporting community-led events and advocating for equitable representation in city affairs. Even with this more secure status, tensions continued both in Yale and on the street, notably as the students in the Black Workshop began to paint and redesign their storefront.

"These guys came up to us, just in regular street clothes, and said, 'What are you doing?' We said that we were coming up with a new design. They said, 'You can't do that.' Another guy takes out his walkie talkie, calls the police, and we got arrested. The police came, and they didn't believe we were Yale students," Dozier noted.

While the University did give funding to the Black Workshop in the wake of the closure of the City Planning Department, it made little effort to actively support it. It was tolerated but not valued, its existence maintained by constant student advocacy.

Dozier feels the Administration's disdain regarding City Planning's advocacy was clear: "'Okay, we'll wipe out City Planning, we'll get most of you radicals out of here. You can stay until you get your degree, and then you go.'"

The Workshop continued for over a decade in various forms, but struggled without full institutional support. The "forward-looking and fruitful" future of City Planning at Yale that Christopher Tunnard had imagined seemed lost. Later administrators, including Joseph Lieberman YC '64, YLS '67, executive associate to the Dean of the Faculties of Design and Planning, commended the impressive work of the Black Workshop. In 1970, Charles Moore, the Dean of the Faculties of Design and Planning, proposed to President Brewster that the Workshop be granted its own space and autonomy, especially to run its innovative community internship program and project-based curriculum.

Funding, however, never materialized, and the



Perspecta 29: Into the Fire, published 1998

"ARCHITECTS NEED TO TAKE RESPONSIBILITY FOR AND BE KNOWLEDGEABLE ABOUT NOT JUST THE BUILDINGS BUT THE WORLD IN WHICH THEY SIT, WHICH IS TO SAY, THE CITY."

proposal was rejected by the Provost of the University, Charles Taylor Jr. After a short-lived rebranding led by Dozier, the Workshop eventually disappeared in the late '70s.

"One of the things I see now looking back is that you need people, you need support. We were very romantic—we thought that things were going to change," Dozier said. "We were sadly mistaken. If I could do it over again, I would have us get much more involved with the administration."

"This is something that has been designed. So what's the counterdesign?"

THE CURRENT PROGRAM OF URBAN studies has stood out within the history of YSoA in its convergence of faculty, administration, and student support. But the question remains: will the introduction of the urban studies major reckon with this history, fraught and rich as it is? Perhaps most notably, there have been no public discussions of hiring initiatives as part of the urban studies program thus far.

"I'd love to see more faculty of color who are really supported," Newsom said. "I think people who start on the tenure track don't end up continuing.... None of these things is going to have any impact on faculty or curriculum if there isn't an institutional structure that supports that and can give funding to it."

These questions extend beyond the walls of Rudolph Hall. On March 29, three weeks after the approval of the urban studies major, 13 senior faculty in the Ethnicity, Race, and Migration Program announced their decision to withdraw their labor from the program, citing lack of University support for the major. Without departmental status, the program has no hiring power, forcing faculty to essentially volunteer their labor to the program—labor which does not factor into the promotion process. The program is one of the most rapidly growing majors on campus. Despite repeated promises from the university administration to change the status and funding of the program, no changes have been made.

While ER&M has its own distinct history, its experiences are reminiscent of the administrative treatment toward City Planning a half-century ago. It's no coincidence that the Black Workshop was founded in 1968—the same year that the students of the Third World Liberation Front went on strike at San Francisco State to protest the Eurocentric curriculum and lack of diversity on their campuses. That year, the principles of self-determination—the same self-determination that the Black Workshop cited in their mission statement—rippled around the world.

Where would the School of Architecture be today if the push for a class consisting of 50 percent people of color had spread across the school? What conversations would have opened up not just in architecture but across disciplines and schools if the Black Workshop had continued to provide a model for self-determination through education? The other changes that occured in the program during that period—the First Year Building Project, the undergraduate major—have become defining features of the School of Architecture. Now, how will urban studies reflect this history?

It is uncertain whether the addition of urban studies will herald other changes to the discipline. Reimagining a realm of design that has so often lagged far behind other similar disciplines is difficult, but the power that architecture has makes realizing these hopes all the more important.

"Architects need to take responsibility for and be knowledgeable about not just the buildings but the world in which they sit, which is to say, the city," Berke said. "I think it is a part of a global responsibility."

At this critical juncture, faculty and students who are interested in taking up the call of urban studies are limited only by their imaginations. This kind of aspirational thinking is one of the things Newsom loves most about design.

"The best of it is making these really wonderful aspirational things. How do we use the strengths of our training to do that at an institutional or policy level? That is, not just about the physical object that I make, but how can I challenge the structures that are bound up in making that thing? That's a big ask, but as designers we have a particular skill set—being able to synthesize, being able to build consensus, being able to see multiple sides of the problem."

Newsom believes that this way of thinking is essential to reimagining architecture as a discipline as well.

"This is something that has been designed; there's a reason why the built environment looks the way it does, there's a reason why the list of faculty you Googled looks the way it does, and so what's the counterdesign—what's the other way of thinking about this with some intention that sets us up for a different kind of future?" Newsom said. "It's really aspirational, and that sort of projective dreaming is really at the root of the strength that we bring as designers to the table. We dream."

set in stone

BY **ISABELLE RHEE**

memorializing World War II's forgotten "comfort women"

BRONZE-SKINNED, barefoot, and dressed in a hanbok, she is seated in a chair facing the congested streets of downtown Seoul. She is decorated in flowers and guarded by a security rope. A small bronze bird rests on her left shoulder. Positioned across the street from the city's Japanese Embassy, her carefully sculpted face gazes straight ahead with a hint of expectancy. She is a survivor of war and a witness of history. She is the Statue of Peace.

Known as Sonyeosang in Korean, the Statue of Peace was installed in Seoul in 2011 to memorialize the hundreds of thousands of women and girls forced into sex slavery for the Japanese Imperial Army during the Second World War. These women, who hailed from countries and territories under Japanese rule, were treated as objects of military conquest and coerced into "comfort stations," military brothels established across Asia.

The term "comfort women" is a euphemism for the women and girls whose dignity and human rights were trampled upon during the war. Seoul's Statue of Peace, which depicts a teenage girl, was the first-ever statue built to commemorate "comfort women" and remind the public of the sexual violence perpetrated against women in Asia during World War II.

Kim Bok-dong, who in the 1990s became one of the first women to publicly identify as a "comfort woman," reminded the world of ongoing wartime degradation when she passed away this January at the age of 92. Widely admired by her fellow activists, Kim inspired hundreds of survivors to share their stories.

Kim's death was covered extensively by international news outlets, sending a shockwave through the network of women's rights activists around the world. Today, the Statue of Peace stands as a powerful reminder that the generation of women and girls that it represents will soon be lost: Fewer than 30 of them are still alive, with most already in their 90s.

"Comfort women" advocacy is a movement with no national bounds; it is gaining traction not only on the streets of Seoul but through the construction of statues and memorials in cities across the U.S.—and even through student activism at Yale.

IN 2017, HYUN SOO LIM LAW '18 founded Yale's "Comfort Women" Task Force, a student-led effort that aims to foster productive conversations about "comfort women" through educational projects. For Lim, current discussions help break decades-old patterns of shaming and stigmatization that the victims endured until the 1990s, when the redress movement took off and the experiences of "comfort women" were revealed publicly for the first time.

"We should always prioritize victims who tend to have the smallest voices," Lim said. "The fact that the majority of 'comfort women' are women of color is a large part of the reason this issue wasn't addressed for decades."

Lim, a Korean-Canadian, became involved with advocacy for "comfort women" in high school, when she volunteered at the Association for Learning and Preserving the History of



World War II in Asia, a Chinese-Canadian group advocating for the inclusion of the Nanking Massacre and other Japanese war crimes in Canadian social studies textbooks. This desire to re-examine wartime histories and injustices eventually led Lim to spearhead awareness efforts at Yale Law School.

As a first-year law student, Lim organized an event at Yale in April 2016, that featured a movie about "comfort women" and the testimonies of two survivors. The event was organized in partnership with the House of Sharing, one of two major "comfort women" advocacy groups in Korea. To Lim's surprise, more than 500 people from the Yale and greater New Haven communities showed up.

The Connecticut branch of Hope Butterflies, an international network of "comfort women" advocates, reached out to Lim after the event and inspired her to assemble a student task force to educate the Yale community on issues of wartime human rights violations. Since then, Lim and the task force have hosted a number of events to raise awareness, the most recent of which was a discussion with Dimo Kim, the director of "Comfort Women: A New Musical."

One of the main goals of the task force is to show that the issue reaches far beyond South Korea. While the topic of "comfort women" is often depicted in the media exclusively as a political conflict between Korea and Japan, in reality, many Korean men played a role in trafficking young women and were complicit in these wartime atrocities.

"War results in excessive violence towards people who are not involved. It's really not about Korea-Japan relations," Clint Yoo '20, one of the task force's founding members, said. "Unfortunately, the only country that is nationally active in figuring out a resolution for this issue is Korea. This is why people perceive this to be a very Korean issue."

However, the diverse backgrounds of the task force's members point to the necessity of intersectional advocacy.

To Lillian Hua '21, who joined the task force during spring 2018, the "comfort women" issue is "a gateway analysis into a bunch of awful gender dynamics that were going on during World War II."

After attending the task force's screening of the documentary film *The Apology*, which follows the lives of three survivors from China, Korea, and the Philippines, and the decades-long sexual trauma they faced after the war, Hua was reminded of her own Chinese grandmother, who lived close to Nanking when the Imperial Japanese Army invaded China. While her grand-



mother was not directly affected by military violence, Hua said, "I thought, 'That could have been her.'"

Keigo Nishio '21, another Task Force member, is a native of Japan and the cultural chair of Yale's Japanese American Students Union. To Nishio, "comfort women" remembrance and redress "has a universal aspect" encompassing issues of women's rights and the rights of sexual minorities.

"I don't think it's an issue of nationality or a conflict between governments. From a universal standpoint, I think that the Japanese government should apologize for it," Nishio said.

YALE'S "COMFORT WOMEN" Task Force is but one example of a growing trend. "Comfort women" advocacy is reaching a larger audience beyond Asia and especially across the United States. In 2010, the United States' first memorial commemorating the "comfort women" was installed in Palisades Park, New Jersey, which has one of the country's largest Korean immigrant communities. And in 2013, a replica of Seoul's original Statue of Peace was installed in Glendale, California due to the advocacy of a grassroots organization called the Korean American Forum of California (KAFC). It was the first memorial depicting an actual "comfort woman" installed in the United States.

In 2007, Kim Hyun Jung, the current director of the KAFC, was involved in the effort to pass U.S. House Resolution 121, which urged the Japanese government to accept full responsibility for the history of "comfort women." After Kim and other supporters lobbied successfully for the resolution—which was approved unanimously in Congress in July 2007—they decided to form an organization aimed at bringing a "comfort women" memorial to California. The KAFC was formed in 2012.

To Kim, installing an outdoor statue was critical to challenging an often-Eurocentric historical narrative. "The reason why we need to understand, remember, and educate about this issue is no different from the reason why we need to remember the Holocaust," she explained.

After the KAFC revealed its plans to install the Statue of Peace in Glendale, the city held a special hearing for citizen input. While dozens of right-wing Japanese groups showed up to oppose the statue's installation, Glendale's city council members ultimately supported the victims. Eventually, the memorial was approved at a city council meeting and placed in Glendale Central Park in 2013.

In San Francisco, activists engaged in a similar, eventually successful effort to install a "comfort women" memorial. Lillian Sing, retired state judge and the first Asian-American female judge in Northern California, described her experience founding the multi-ethnic and multi-national Comfort Women Justice Coalition in August 2015 along with retired judge Julie Tang. Both women stepped down from their judge positions to lead the coalition and advocate for the memorial full-time.

"I feel that I dispense a great deal of justice on the court, but there was so much injustice connected to the 'comfort women' issue, so I needed to spend all my time and energy and resources trying to find some justice for these girls," Sing explained in an interview with *The Politic*.

Bringing the memorial to San Francisco took two years and required over 30 appearances before public bodies. Some conservative Japanese groups lobbied hard against the memorial at hearings, eventually demanding that the memorial at least be installed in a private area. However, in September 2017, Sing, Tang, and their colleagues ultimately succeeded in bringing the memorial—the Pillar of Strength—to Saint Mary's Park in San Francisco's historic Chinatown.

The Pillar of Strength, sculpted by artist Steven Whyte, depicts young Chinese, Korean, and Filipina women holding hands while standing on a metallic pillar. The likeness of Kim Hak Sun—the first "comfort woman" to come publicly forward about her experiences—looks up at the girls from below. The sculpture is both a multi-ethnic and intergenerational symbol of survival and strength.

The successful installation of memorials in Glendale and San Francisco would not have been possible without the presence of surviving "comfort women," many of whom traveled to sites across the United States to share their stories.

Kim Hyun Jung, who had invited Kim Bok-dong to Glendale twice and recalled Kim's

Today, the Statue of Peace stands as a powerful reminder that the generation of women and girls that it represents will soon be lost:



Fewer than 30 “comfort women” are still alive, with most already in their 90s.



pivotal efforts in helping to rally support for the installation of Glendale's statue, reaffirmed the mark that surviving "comfort women" have left on the movement.

"All the city council members of Glendale met with Grandma Kim, and they were really inspired by her," Kim Hyun Jung explained. During Kim Bok-dong's visit to Glendale, the KAFC organized an event at Los Angeles' Museum of Tolerance that featured her testimonies as well as those of Holocaust survivors and modern-day human trafficking victims.

"The death of Kim Bok-dong shows that many of these women have died without receiving any apology or justice from Japan," explained Sing. "What her death did do was help other comfort women come out and break their silence. Two Chinese comfort women recently broke their silence two months ago," she maintained.

"It was the grandmas who broke the silence in the early 1990s to tell the whole world that they want justice," Kim explained. "I think they were the pioneers of the #MeToo movement, actually."

AT YALE, the Comfort Women Task Force continues to spread the stories of these women and the messages of resilience and hope promoted by advocacy organizations like the Comfort Women Justice Coalition and the KAFC.

Eui Young Kim '21, a "Comfort Women" Task Force member from Korea, described the history of "comfort women" as a "basic part of education for every Korean." She explained: "It was jarring for me talking to people about 'comfort women' because a lot of people have no knowledge whatsoever about the issue at Yale."

Memorials serve as a means to remember. Young people who pass by the Statues of Peace in Seoul and Glendale or the memorials in San Francisco and Palisades Park will be reminded of their grandparents' generation who, like many "comfort women," came of age during the 1940s. They may wonder if the young women depicted in these monuments could have been their very own grandmothers if circumstances had lined up differently. They will witness the tangible persistence of the activists who have gathered in front of Seoul's Japanese Embassy every Wednesday since 1992 to demand full redress. They will remember an era of history that remained in the dark for far too long and the women who continue to fight for the remembrance they deserve.

“We Charge You”

After Bridgeport police officer killed a 15-year-old, a community demands accountability

BY **SANOJA BHAUMIK**

“I WOULD NEVER IMAGINE having to prepare for my brother’s birthday by picking out decorations for a memorial site.”

On September 14, 2018, Jazmarie “Jaz” Melendez, a 20-year-old with a high ponytail and ripped blue jeans, stood on a makeshift platform in McLevy Green Park in Bridgeport, Connecticut. Around fifty people dotted the lawn in front of her. Her black T-shirt read, “Charge Officer Boulay with Murder.”

A large white banner listing the names of civilians recently killed by Bridgeport police hung from the platform below Jaz’s feet. On its left was a photo of a Jayson Negron, Jaz’s younger brother. In the picture, the young Latino teenager sported a white quarter zip and short, curly brown hair. Jayson shared Jaz’s big brown eyes and freckles, but the picture’s focus was on his wide smile. It was a high school class photograph.

The crowd had gathered that evening for what would have been Jayson’s 17th birthday. Kerry Ellington, an organizer with Justice for Jayson, an activist group formed after the teenager’s death, stood to speak. She yelled, “NO JUSTICE, NO PEACE, NO RACIST POLICE.” The crowd joined the chant before falling to the ground, face up in a die-in protest.

On May 9, 2017, Bridgeport Police Officer James Boulay shot and killed unarmed 15-year-old Jayson Negron. Jayson and a friend, Julian Fyffe, 21, had been driving a stolen car in Bridgeport when they heard sirens behind them. Under



PHOTO BY **JUSTICE FOR JAYSON**

15 minutes later, around 5 p.m. on a Tuesday, Jayson lay dead on a congested street with four bullet wounds. Within minutes, police officers and civilian cars had surrounded him, and a crowd had begun to congregate. Jayson's hands were cuffed behind his back.

WE CHARGE YOU

Mayor Joe Ganim, Acting Chief AJ Perez, Bridgeport Police Department

[Justice for Jayson Facebook post, June 2018, shared 13 times]

IN THE DAYS FOLLOWING Jayson's death, his killing sparked local and national outrage. Family members and community activists organized to demand accountability from the Bridgeport Police Department (BPD) and police statewide. Still, the truth about May 9 emerged slowly, with police reports and witness accounts in conflict. Confronted with a visible police killing in downtown Bridgeport at 5 p.m. on a Tuesday, BPD engaged in a series of missteps and inconsistencies that clouded the public narrative. Two years later, Officer Boulay still patrols the streets of Bridgeport, and BPD has faced no official consequences. (BPD did not respond to multiple requests for comment.)

With a population of 145,936, Bridgeport is the largest city in Connecticut. The state has the third-worst level of income inequality in the U.S.—the most unequal nation in the world, according to the Global Wealth Report. Bridgeport and its surrounding areas embody this trend: The city lies on the northern shore of the Long Island Sound, just a few miles from some of the nation's wealthiest suburban enclaves.

Demographically, Bridgeport does not match its surroundings, and BPD does not match its city. Forty-two percent of Bridgeport police officers identify as Black and/or Latino, compared to 72 percent of the city's population. Still, BPD is one of the most diverse forces in the state, and the department actively attempts to recruit minority residents as officers. In November 2017, six months after Jayson's death, BPD received a $1.75 million federal grant to expand its already-large community policing program.

Despite its attempts to diversify the force, BPD has come under intense scrutiny from local activists, community members, and civil liberties organizations. In 2015, two BPD officers were sent to prison for using excessive force on a suspect. In March 2019, the department released a report that cited 17 officers for violations of conduct in a single incident.

But activists say that the issues go beyond the reported incidents. Kerry and Jeannia Fu, both New Haven-based Justice for Jayson organizers, stressed the magnitude of police violence both in Bridgeport and across the state.

"From April 2016 to now, 16 people have died at the hand of Connecticut police," Kerry said. "You know about Jayson, maybe Corbin, maybe some others. But this problem is more than just shootings. It's police chases and all this other stuff that puts the community in danger." Since Jayson's passing, separate BPD chases led to the deaths of Corbin Cooper, an 18-year-old driver, and Susan Tomcyzk, a 61-year-old passerby.

***#WECHARGEYOU** with the murders of*

Jayson Negron, age 15 (2017)
Corbin Cooper, age 18 (2018)
David Anderson, age 22 (2016)
Susan Tomcyzk, age 61 (2017)

[Justice for Jayson Facebook post, June 2018, shared 13 times]

BORN IN BRIDGEPORT in 2001, Jayson lived in the city with his mother, Natasha Tosado, and older half-sister, Jaz. "The three of us were incredibly close," Jaz told me over the phone in April 2019. "But Jayson and my mom, they were best friends. They had a type of love I can't even put into words."

Jaz remembers Jayson as a funny, sweet, and slightly protective younger brother. "I'm older, but I always made the joke that he was the one taking care of me," she said. "Whenever I was sick, he'd bring me food, check my temperature. He wanted to make sure that everyone he loved was perfect."

In May 2017, Jayson was four months away from his 16th birthday, when he could finally receive a learner's permit. A close relative had bought him a new car to celebrate the occasion. Two years later, *Jayson J. Negron* remains stamped across the car's rear windshield.

The family wanted to ensure that Jayson finished school, and despite his academic challenges, Jayson maintained regular attendance. "School was sometimes tough for Jayson," said Jaz in a video posted on Facebook last year. At an early age, Natasha said, Jayson found a passion outside the classroom in music.

In middle school, Jayson and his friends made rap videos outside his father's apartment complex in Bridgeport. By the time he entered high school, Jayson loved to write his own lyrics. He soon met other students and older friends who became his musical collaborators. His rap name was 2Oz., "Two Ounce," and he had released a few records on SoundCloud.

Amani, a friend who ran Just Right Studios in Bridgeport, saw Jayson three to four days a week. According to Amani, Jayson was always ready to get behind the mic and recite his lyrics.

"It was him and his music. He didn't talk about nothing else," Amani said in a video posted to Facebook last year. After each recording session, Amani would invite Jayson back to his house for dinner. "He was like my little bro. And my mama loved Jayson," Amani said.

Jayson had not shared much of his music with Jaz. She said he wanted to perfect several songs before releasing them. According to Jaz and young musicians he recorded with,

JAYSON NEGRON. *Suspected of a Misdemeanor. ORDERED TO DEATH.*

[Justice for Jayson Facebook post, July 2018, shared 30 times.]

ON MAY 9, 2017, Jayson was on his way to a music recording session at Just Right Studios. He picked up an older friend, Julian Fyffe. As the two drove down Park Avenue just before 5 p.m., sirens and lights began to flash behind their brown Subaru Forester.

A day earlier, on May 8, a license plate reader had scanned the same Subaru Forester when it was parked outside of Jayson's home. A hit came up: The car had been stolen from a nearby suburb in April. In the state investigation conducted after Jayson's death, police found that he had received a Facebook message with a picture of the Subaru's keys around the time it was stolen.

Though department protocol requires that police immediately take custody of stolen vehicles, the officers left the Subaru outside Jayson's house. The next day, when Jayson took the car out to go to Just Right, he passed an undercover officer, Detective James Borrico. Borrico, who had been previously under investigation and cleared for a 2013 excessive force case, followed Jayson and called for backup. A patrol car quickly arrived, carrying rookie officer James Boulay in the passenger's seat; the officers turned on the patrol car's lights and sirens.

According to police statements, when Jayson heard the sirens, he did not pull over. Instead, the underage driver turned left onto Washington Avenue and then made an immediate right into a Walgreens parking lot. Video footage shows him speeding through the parking lot before stopping briefly at an exit onto Fairfield Avenue.

"He looked young, dazed, confused, and nervous," one onlooker wrote in a statement for police. "I was concerned that he may damage my car; he seemed disoriented. He presented like a very nervous, new driver."

Police officers at the scene interpreted the car's movement as a threat. Detective Borrico said in a written statement, "The Subaru Forester again accelerated forward and backward ramming vehicle[s] in its way in efforts to flee."

Boulay got out of the patrol car followed Jayson's car on foot as Jayson turned onto Fairfield.

"Get out of the car! Get out of the fucking car or I'm gonna fucking shoot you!" screamed Boulay, according to multiple witness statements.

Jayson backed up a bit, but then continued driving forward, side-sweeping cars that were stopped at a red light on Fairfield Avenue. It was peak traffic time on a congested street in Bridgeport.

According to witnesses, Boulay ran toward the driver's side with his gun out of his holster and pointed ahead. He opened the door and attempted to grab Jayson's arm, while Jayson leaned onto Julian in the passenger seat. Jayson's foot was on the gas pedal, Boulay testified, and "the car reversed," according to witness and police statements.

Boulay and nearby police officers, including Borrico, stated that Boulay was being dragged under the car. In initial police reports, Boulay was allegedly standing *behind* Jayson's car as it reversed. But the police later admitted that the witness statements were correct: Boulay stood *next to* the driver's seat, and the car moved backwards at five miles per hour. Boulay nevertheless claimed that his life was in danger.

One witness in a car on Fairfield Avenue wrote, "The car moved briefly in reverse causing the officer to be jolted by the open driver's side door positioned to the left of him which moved towards him. Had the car moved in reverse more forcefully and for a longer period of time, the officer could have fallen and potentially been more seriously injured. In this case, the officer became off balance."

Boulay claims that he fired his weapon while the car was in reverse. But one civilian witness claimed to have seen the car briefly pause before Boulay began shooting. Though this detail could not be confirmed due to conflicting witness accounts, what happened next was clear. One shot was fired, then a pause. Four more followed.

A witness later stated, "I saw the teen's face. I saw what I thought was the life going out of him. His head leaned back slowly and his eyes looked up slowly. His energy faded as he relaxed his body. His expression was subtle. The fear was gone."

***"WHY DOES SOMEONE** have to die for a stolen car?"*

[JR, Jayson's friend, Justice for Jayson campaign video, May 2018]

KERRY ELLINGTON WAS SITTING in her car in New Haven around 5:30 p.m. when she began to receive texts about a police shooting in Bridgeport. Around 7:45 p.m., Kerry arrived outside the Walgreens in Bridgeport. About 100 people were already there, slowly gathering as they each heard the news from networks of family and friends.

"I didn't expect to see the body," Kerry said. "There was a boy's body, just laying out there. We didn't know who he was. But he was there."

That evening, Jayson Negron's body lay on Fairfield Avenue for six hours. His stomach against the street, his hands cuffed behind his back with a zipper rope, his entire body uncovered. Without police partitions, the 15-year-old boy became an evening spectacle.

Police cars circled Jayson's body and surveilled the area of downtown Bridgeport. They watched the community members who had gathered, a multigenerational mix of predominantly Black and Latino residents.

"One woman kept saying, 'A baby died, a baby died.' I remember hearing that again and again and again," said Jeannia, who arrived at the scene that evening.

Livestreams from the scene showed people express-



PHOTO BY **JUSTICE FOR JAYSON**

ing both grief and anger, some crying, some screaming, some invoking Black Lives Matter. Few had any information. No one had organized an action; they had gathered spontaneously in the wake of a visible tragedy.

"We didn't really know what was going on," said Kerry. "We didn't know his name; we didn't know the police officer. All we saw was the body dead on the ground."

Around 10:45 p.m., almost six hours after the shooting, Jayson's body was taken away. The public watched as he was covered, and many stayed for hours into the night yelling demands to know what happened, to know the names of the officers involved, and calling for their arrests.

Kerry headed home at 1:30 a.m., exhausted physically and emotionally from six hours at the scene of a killing.

***BE ON THE LOOKOUT** for this officer: James Boulay*

Officer James Boulay has a history of excessive force. Within months as a rookie cop in the Bridgeport Police Department, he punched a resident in the face and murdered 15-year-old Jayson Negron.

[Justice for Jayson Facebook post, September 2018]

ON THE MORNING of May 10, 2017, Jaz Melendez woke up to her usual alarm so she could make her biology class at Albertus Magnus College in New Haven. She looked at her phone and saw several messages from friends and family members. Then she opened Instagram and saw photos of Jayson with the caption, "Rest in Peace."

"At that moment, I had no clue. I had no idea how to process that," she said. Jaz called a close relative. "They said, 'We're not sure if what they're saying is true. We don't know if it was Jayson who was actually the one who was murdered, or if he was just there in the car.'"

Jaz spent the rest of her morning trying to piece together what had happened. Jayson wasn't answering his phone. Jaz and her father visited police stations and several Bridgeport hospitals, searching for him.

"I was just trying to find out info on where my brother was, and nobody was giving it to me," said Jaz. "Everyone was saying that they couldn't tell me anything."At the police station, officers walked around mentioning that 2Oz., Jayson's artist persona, had been killed. But they still wouldn't provide confirmation to Jaz.

Finally, that afternoon, Jayson's father, Juan Negron, called Jaz with the news. Family members told her that a protest was going on that evening and that one had occurred the night before.

"I tried calling my brother that night, on May 9. I think about that sometimes, that he was already killed when I called him," she said, her voice cracking over the phone. "I wish I could have been there with my brother."

Late on May 10, Jaz arrived at the scene of her brother's

death: the Walgreens parking lot. A memorial had already been created for Jayson, and people who claimed to be witnesses came up to her and told her what they had seen.

"Already they were telling me things that didn't match up with what the police said. The police said that Boulay was behind the car, that Jayson tried to run him over. Boulay wasn't behind it, he was holding his gun out at the driver's seat," Jaz told me. "[BPD Chief] AJ Perez was going all over and telling people Jayson died of a gunshot wound to the head. He wasn't even shot in the head."

IT IS CLEAR *that the lives of Black and Brown youth do not matter to Officer James Boulay. He must be fired and charged with murder.*

HE IS ARMED AND WILL KILL AGAIN.

[Justice for Jayson Facebook post, September 2018]

"BLACK LIVES MATTER! Black Lives Matter!" Kerry yelled into the microphone. It was midday on May 10, 2017, before Jaz arrived. Kerry stood on Fairfield Avenue at the site of Jayson's death. Dozens of people circled her and repeated the chant. After Kerry and other organizers sent out messages in several online groups the day before, around 400 people showed up to protest the killing.

Attendees responded not only to Jayson's death but also to nationwide police violence against unarmed teens of color. Jayson was the third 15-year-old to be killed by a police officer in 2017. The power of the social media pervaded the speeches, and community members made comparisons to 18-year-old Mike Brown and 12-year-old Tamir Rice. They called out the lack of police transparency, a recurring pattern in police shooting cases.

"BPD, Who do you protect and serve?" read a sign held by a middle-aged Black woman with short red hair.

As the daylight turned into dusk, the crowd marched to Bridgeport's central police station, about a half mile away. When they arrived, at least 13 police officers stood on the roof, some armed with guns, others carrying cameras, several protesters said. On the ground, the marchers found themselves surrounded.

"They kettled us," Kerry told me, referring to the controversial practice of restricting protesters. She moved her hands to two corners on the coffee table in front of her, mimicking how officers confined marchers into a single block, preventing access to the sidewalk. Only one small exit remained, and some marchers began to leave out of fear.

Kerry felt scared, and at times, she worried that she wouldn't be able to leave. She had been to many protests, but she had never seen a police response so large, aggressive, and coordinated, she said. "We were all already traumatized," she told me. "Then they retraumatized us."

I'M IN SO MUCH PAIN *right now, they left my baby cousin on the ground to die.*

[@FTWGiovanni Tweet, May 2017, Favorited 58 times]

"WE WERE MAD at the start, but I didn't even see the video until days later," said Kerry, referring to now-infamous footage of Jayson's body.

Three days after Jayson's death, Giovanni Rivera, Jayson's cousin, posted a grainy, one-minute video on Twitter of the minutes after Jayson was shot. The start of the video shows Jayson's body lying still on the ground, his left cheek pressed against the pavement and his head pointing slightly to the right. Four seconds later, the camera refocuses. Jayson's head appears to have moved, and he is now face-down on the street. During the entire video, a police officer stands next to the body, not engaging with the onlookers. Medical assistance has yet to arrive.

Rivera tweeted, "This is a nightmare... Bridgeport PD told my family they shot Jayson in the head and was dead on scene this video clearly shows otherwise."

Though initial police reports stated that Jayson died on impact of the gunshot wounds, Assistant Medical Examiner Gregory Vincent could not identify a specific time of death. Jayson could have been alive when Officer Boulay and Detective Borrico took Jayson's wounded body out of the car, laid him down on the ground, pulled his hands together, and fastened them behind his back with handcuffs.

Those moments were recorded on a cell phone cam-



PHOTO BY **JUSTICE FOR JAYSON**

era, then reposted hundreds of times on Twitter accounts and Facebook pages. *The New York Times* and *The Washington Post* picked up the story. The incident shed light on the power of social media in the age of Black Lives Matter, but it also led to the replaying of a teenager's death on thousands of newsfeeds.

Jaz felt blindsided by the release of the video. "As a sister, you don't ever wanna see that. That's the first thing you see when you search up Jayson, when you Google his name." She knew that the video proved that the police had lied about Jayson's time of death, but it left the pain of seeing her brother's body on the ground, played in loops on cable television.

"When I think of Jayson, I think of sunshine."

Responding to the outcry over the police's handling of the investigation, BPD Chief Armando Perez admitted that he and his force did not know what to do with Jayson's body. Police at the scene questioned whether covering the body would create contamination, or interfere with the fresh, ongoing state investigation of the use of deadly force by a white cop on an unarmed teen.

Ultimately, Perez regretted the decision to leave the body in view. In a press conference on May 13, 2017, he commented, "I don't care if it's a good guy or a bad guy—I will never allow that to happen again. Never. That's normal procedure: we hide the body."

WE WILL NEVER FORGET YOU, *Jayson!*

We love and miss you!

#Justice for Jayson

[Justice for Jayson Facebook post, December 2018, shared 26 times]

ON JANUARY 26, 2018, 263 days after Jayson's death, Connecticut State Attorney Maureen Platt released the findings of the investigation of Officer Boulay and the events leading to the shooting. They brought Jaz into a small meeting room in the State Attorney's Waterbury office.

Jaz, wearing her black T-shirt with the words "Charge Officer James Boulay with Murder," was surrounded by state police and representatives. They outlined the many findings of the investigation, confirming some of what Jaz had already heard from speaking to witnesses. The stolen car had been scanned the night before, Officer Boulay was next to the driver's seat, and Jayson did not run him over.

But Platt explained that Boulay would be cleared of all charges. The conclusion was clear. "Officer James Boulay reasonably believed that the use of deadly force was necessary to defend himself from the use of deadly force—that being the Subaru operated by Jayson Negron."

Jaz expected the decision, but she became emotional hearing it for the first time. "I had some faith in the system, the facts were there," said Jaz.

The day before, BPD sent warnings to residents about potential "violent riots" following report's release. They delivered flyers to businesses, closed schools early, and listed help from nearby police departments.

In the early evening hours of that cold January night, protesters found themselves confronted by hundreds of police officers with shields, gas masks, and riot gear. The protesters marched for Jayson's case, objecting to Boulay's return to the force. The protests lasted hours, but there was no reported violence nor any arrests.

Later that year, I asked Kerry how the group continued their fight after the decision. "I mean, people need to know what's going on," Kerry said. "And change can happen at the city. There's a police commission in Bridgeport [that] is not doing shit right now, but they could fire Boulay." She then listed off other ways the group has made an impact: placing pressure on Chief Perez to resign from his post, derailing Mayor Ganim's gubernatorial campaign, and organizing for other victims of police violence in Connecticut.

It was only after Jayson's death that Jaz, then a first-year college student, entered the activism community. "They gave me strength," she said. "They just empowered me. I felt a strong sense of community from many people and felt their love."

For Jaz, activism has taken an extremely personal toll. "It's an emotional feeling to know that when I'm standing out there, yelling for Justice for Jayson, that that's my brother. I have this pain tied to it."

Since May 2017, Justice for Jayson has evolved to become a broader, state-wide movement pushing for changes to police culture. The group has planned numerous protests, marches, and memorials for those who have died in Bridgeport and in other Connecticut cities. The police remain a constant presence in their actions. In November 2017, BPD took down a memorial made on the side of the road where Jayson was killed.

Jaz has carried her love for Jayson to her sustained activism. "When I think of Jayson, I think of sunshine," Jaz told me. She and other family members constantly refer to his wide smile: it had become emblematic of Jayson's youth, and to them, his innocence.

Seeing the deaths of other Black and Latino youths has intensified the movement's demands. "We're fighting so hard for this to never happen again, to know that one life has already been lost so close to me," said Jaz. "To relate that pain to other families who experienced that after Jayson gets me even more upset. You feel their pain."

State of Mind

Yale students contend with barriers to mental health counseling

BY **MOLLY SHAPIRO**

State of Mind
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"I HAVE DEALT WITH mental health stuff—depression, anxiety—in the past," Catherine said. "I was like, if I can have free mental health counseling, and I'm living on my own for the first time, I should be proactive about this."

Catherine Rutherfurd '22 called Yale Health on September 1, 2018 to express her interest in finding a therapist. "There was no available appointment for three weeks. They were just busy," Catherine explained. She was seen for only a preliminary consultation, during which a practitioner evaluated her mental state, on September 19.

After the consultation, Catherine was told it would be a matter of days before she was matched with a therapist.

Almost two weeks later, the practitioner responded.

"I've been told you should still hear from someone in the next couple days but I understand you are anxious to get started! I'm sorry it's taken a little longer than I expected," he wrote in an email.

But Catherine received no news. One month later, Catherine wrote him again.

She finally heard back with the name of her therapist in December. She had waited for nine weeks.

CATHERINE'S CASE IS not unique. At Yale, students seeking mental health services often wait months to receive support. The Yale College Council (YCC) 2018 Mental Health Report found that only 31.5 percent of students agreed that the length of time they waited before receiving help was reasonable. Yale Health does not publish data on student wait times.

The delays point to a larger problem: Yale lacks sufficient resources to meet students' increased demand for counseling. For Yale University's student body of 12,385, the Yale Mental Health & Counseling website only lists 34 full-time therapists.

Campuses across the country are facing the same problem. According to a 2015 report by the Center for Collegiate Mental Health, the number of students who visited campus counseling centers between fall 2009 and spring 2015 grew by 30 percent. In response, colleges like Yale are strained to meet their students' needs.

But as colleges scramble, students struggle. Paul Mitrani, clinical director at the Child Mind Institute in New York, a clinical practice for children facing mental health and learning disorders, says that such long wait times are detrimental. "Students are not getting the help they need. And the problem with that is that the day you see a psychiatrist, that's not the day you start getting better," he told *The Politic*.

Nance Roy, the chief clinical officer of the Jed Foundation, an organization committed to mental health on college campuses, also pointed out that long wait times might turn away students altogether: "It sometimes takes a student a while to actually go for help. They may feel ambivalent, scared, uncertain, so when they actually take the step to reach out for help, it can be discouraging to learn that one has to wait. They may ultimately decide not to return."

Students who are proactive in reaching out for mental health counseling often see their conditions worsen while they are waiting, defeating the purpose of their early attempts to get support.

Jazzie Kennedy '20 felt that way. Jazzie had been to Yale Health as a first-year, when she was feeling overwhelmed with school. Though she had to wait a month to get assigned a therapist, she found the services helpful once she received them. But she stopped going the following year. "I think I just went into sophomore year and assumed that everything was fine," she said.

Things were not fine, and she struggled with depression that winter. Jazzie decided to seek help at the beginning of her junior year. "I made a proactive effort to reach out in advance," she said.

As Jazzie waited to hear back from Yale Health, her decision to seek out mental health services became less of a precautionary measure and more of a necessity. Her dog passed away in September, and she felt herself spiraling as a result. "That's when I really felt like I need to talk to someone because I was grieving and it sucked," she said.

But she was not assigned a therapist until October, despite attempts to expedite the process by reaching out to a family friend who holds a senior position at Yale Health. "I don't even know how much longer it could have taken for everyone else," Jazzie said.

"I NEVER REALLY HAD access to [mental health] resources back home," said Aaron '21, who requested a pseudonym to preserve his anonymity. "I'm from a community that didn't necessarily smile upon those kinds of things, so it was my first access to them."

Aaron, now a sophomore, sought help from Yale Health in the fall of his first year. He reached out in September and wasn't matched until November. "That's a comparatively short turnaround," he said, based on conversations with his peers.

After waiting for over a month, Aaron finally decided to call Yale Health. "I wasn't getting anywhere, and I was getting frustrated with it," he said.

Aaron was matched with a therapist shortly after the phone call. "I'm pretty confident I was bumped to the front of the line because I reached a very sympathetic person and I was in a not-great place when I called," Aaron explained. "I think that a hysterical male voice is something that they're not necessarily used to, and so they responded quite urgently to that."

Though Aaron is grateful for the services that he has received, he was concerned that his phone call might have allowed him, a male, to be seen faster than his peers: "I always felt weird about the fact that I got shot to

"The day you see a psychiatrist, that's not the day you start getting better."

the front of the line because of the urgency of the call. I think that shows a problem because I was probably more comfortable getting louder due to my privilege. I think that probably leads to a lot of people getting shut out."

Heidi Dong '20, the YCC vice president, emphasizes in an interview with *The Politic* that placing that first phone call for help can be difficult for students: "It's hard for someone to say, 'I'm going to call this number, and someone on the other end is going to tell me what to do and who to see.'"

Catherine recognizes that, when reminding mental health services to match her with a therapist, she might have been more effective calling than emailing Yale Health. Nonetheless, she chose not to call. "I didn't try calling because part of my [anxiety] is I really hate making appointments over the phone." She also mentioned an additional barrier: there were few private spaces at Yale where she felt comfortable calling. "How am I supposed to make a phone call like, 'Hi, I have mental health problems,' so that the rest of my suite can hear me talk?" Catherine said.

EMMA '21, WHOSE NAME has been changed to preserve privacy, has had to talk about her post-traumatic stress disorder (PTSD) to at least three people at Yale Health: her first therapist, her second therapist, and her psychiatrist.

"I had to explain my trauma over and over to people, and that kind of sucks," she said. "It's like, I already hashed it out with therapist number one, now we're onto therapist number two. I'm not getting emotional about it now because it's very much rehearsed. But I feel like the whole point of therapy is that you get emotional."

Emma decided to seek mental health support in the fall of her sophomore year after struggling with anxiety throughout her first year at Yale. "I kind of thought that denying everything was easier—like pretending it's not there means it's not there," she explained. Emma took a diagnostic exam on Yale Health's website, and the results said she had anxiety, depression, and PTSD. She took the test two more times, got identical outcomes, and picked up the phone to make an appointment.

For Emma, the problem was not waiting to be matched with a therapist (the person who performed her diagnostic made her an appointment right away), but unresponsiveness from the therapist she was assigned. "She ghosted me, and I emailed her several times," Emma explained. "I left notes at the [Yale Health front] desk to make an appointment with her. I called her several times. No response."

The therapist had referred Emma to a psychiatrist who could prescribe her medication as she went through therapy. For a long period the psychiatrist—whose sole stated job was to prescribe medication, not provide counseling—was the only mental health professional Emma consistently saw.

"So like, I'm being medicated but I'm not in therapy," Emma said. The psychiatrist started to see Emma for longer sessions and do therapy with her—going beyond her official duties—while Emma's transfer request for a more responsive therapist was being processed.

Finally, Emma was assigned a new therapist. But that doctor didn't have much time for her either. She encouraged Emma to book appointments every other week, instead of weekly. But for Emma, 45 minutes twice a month was not sufficient.

"It takes a solid three or four sessions just to explain all the stuff that's going on because it's not just like I come in this week with a new set of issues. I come in this week with a set of issues that I've had for the past ten years," Emma explained. "Forty-five minutes every other week? It's going to take us forever to get there."

Mitrani explained that with such infrequent sessions, there will be "no progress toward what [patients





JAZZIE '20 (LEFT) AND CATHERINE '22 (RIGHT).

and therapists] are working on."

Emma has to spend so much of each session explaining her anxiety that little time remains for the therapist to offer coping mechanisms for the next time Emma starts having a panic attack.

"I honestly think that my mental health has gotten worse since going to Yale Health," Emma said. "Because I think that half-assing therapy is worse than not doing therapy at all. Repressing and compartmentalizing work really well, and I'm really good at that. But when you're asking me to bring stuff up every other week that I don't want to talk about and I'm not processing it, but when I leave, I'm freaking out about it, then that's not really healthy."

IN APRIL 2019, Emma's psychiatrist became a Yale Health therapist, and they now meet every week. "I'm at a better place at Yale Health now than I was three months ago," she said.

After students interviewed for this story, like Aaron and Catherine, were finally matched with a therapist, their impression of the services they received at Yale Health were more positive.

"I don't think it was necessarily life-changing or a very great experience. But it was definitely something that made me think about issues that were on my mind once a week, and that was probably good," Aaron said. "I think the biggest cathartic part of it was the very basic fact of just having another body that was confidential."

Catherine was more positive about her experience with her specific therapist: "The fact that I found such a good person and we clicked immediately—it's rare, and that's very lucky."

For Catherine, part of what made her therapist such a good match was her familiarity. "I have a middle-aged white lady as my therapist, and that's the person I trust most in my life—a middle-aged white woman, my mother," she explains. "If I was a different race or gender, I might prefer someone different."

Many students who have sought help at Yale Health cite the lack of diversity as a major barrier to receiving the services they needed. The coverage gap was so pronounced that, according to students involved in the Afro-American Cultural Center, Director Risë Nelson took it upon herself to distribute a list of Black therapists in the Greater New Haven Area.

ACCORDING TO HEIDI, the directors of Yale Health are aware of student criticisms of the school's Mental Health & Counseling services. But it is unclear if Yale Health staff understand the depth of the problem or what exactly

they are doing to try to fix it.

Yale Health clinicians refused to comment for this story and instead deferred to the director of Mental Health & Counseling, Lorraine Siggins. Siggins has not responded to repeated requests for comment.

The Mental Health Advisory Committee, which was formed by Yale Health in 2013 after the YCC released its first report on mental health, is the only avenue through which students can engage with Yale Health on matters of institutional policy. Heidi, a member of the student committee, says this is likely for "consolidation" purposes.

"There are a lot of people who want to work on mental health, so [Yale Health prefers] to have those people bring things to them in those meetings," she explains.

But Saloni Rao '20, the YCC president, sees many flaws in this centralized system: "What's especially frustrating is that [Yale Health] is in charge of convening the committee because it's a student advisory group for them, not an advocacy group like the YCC." She says that the committee was convened for the first time in February this academic year.

"It's the YCC's job to advocate on behalf of all students, and we're trained in how to have meetings that result in actionable change. I don't know if students on this advisory committee position themselves in the same way," Saloni explained.

Although the advisory committee has helped initiate reforms, such as changes to the Mental Health & Counseling website, committee member Audrey Huang '21 acknowledged the body's limitations: "The most we can do is say, 'Based on YCC survey data and our personal experiences, here are things we'd like to see happen,' and at most they can say yes or no, but ultimately, it's not up to us."

As a result, Audrey has been looking for other ways to get involved in mental health advocacy on campus, such as through mental health-related clubs and publications.

Emma shared the concern that student voices are being silenced: "I feel like the university at least makes an attempt in other areas to make us feel like we're being heard. But there's nothing on this end. It just feels like they don't care."

AARON BELIEVES THAT YALE has the resources to provide adequate mental health services but is instead choosing to spend them on unnecessary luxuries.

The first-year dinner, for example, included the Parade of Comestibles. "Let's get rid of the bullshit," Aaron said. "Let's say, 'We're going to get rid of all these things and life's going to get a little more bare-bones, and in response, we are going to give you enough mental health counseling.'"

Emma feels the same way: "We have so much money. We can get some more therapists."

Students recognize that Yale has taken major steps to improve student wellness on campus with initiatives like the Good Life Center, a space for naps, tea, and meditation in Silliman College. But many see that as only a start. "Wellness is not mental health," Rao said. "But it does go hand in hand."

With regard to Mental Health & Counseling, there are practical limitations to what Yale can do, at least with its existing infrastructure. Dong explains that Yale Health's building has a finite number of rooms and can therefore have only so many clinicians.

Roy said that there are alternatives to increasing the number of therapists, such as establishing triage systems through which students could be evaluated immediately to determine the severity of their mental health issues. "This is effective in catching those students who are in crisis or need urgent care and making sure they do not have to wait for help," she explained.

She also recommended that universities use online programs that enable students to access resources at any time of day and establish relationships with nearby counseling centers in order to provide quick referrals for students in need.

It is unclear whether Yale is seeking to implement these measures, but Dong believes the university is not just sitting idly by. "There are important conversations happening," she said.

But Catherine was blunt: "All of us are struggling here. This place is hard. And if this place is hard, you better have some things that are going to support us besides the damn Good Life Center."

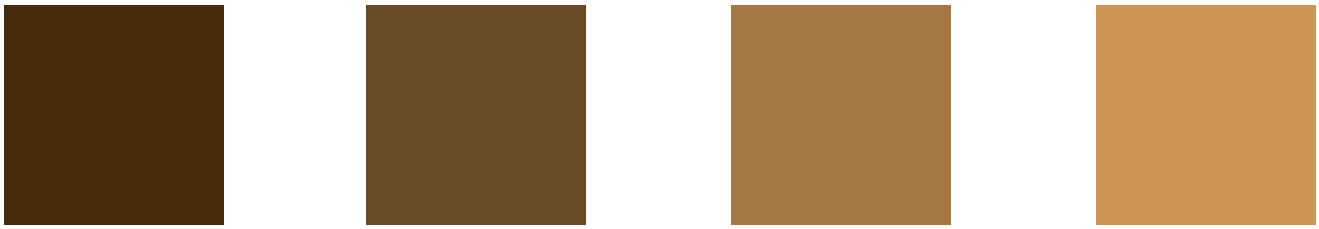
"I come in this week with a set of issues that I've had for the past ten years. Forty-five minutes every other week? It's going to take us forever to get there."

HAIR POLITICS



HOW DISCRIMINATION AGAINST BLACK HAIR IN SCHOOLS IMPACTS BLACK LIVES

BY **COURTNEY NUNLEY**



ON AUGUST 9, 2018, 11-year-old Faith Fennidy started her first day of sixth grade at Christ the King Parish School in Terrytown, Louisiana. According to *The New York Times*, school officials approached Fennidy to tell her that her hairstyle "did not align with school policy." About a week later, the *Times* reported, after her parents spent a "considerable amount of money" changing her hair, school officials told Fennidy that her new box braids were unacceptable—even though she had previously worn braids at the school for two years—because of a new policy against hair extensions introduced that summer. The school didn't wait for Fennidy to try again: This time, they told her not to come back. It was the day before picture day.

A viral video erupted. Originally shared by Fennidy's brother and viewed millions of times since then, the video shows Fennidy crying and packing her things as her parents argue to administrators that her hair is fine as is and that her teachers are deliberately humiliating her in front of her peers.

Within a week, both Fennidy's family and the family of her classmate Tyrielle Davis, who was also sent home around the same time because of her hair, decided to sue the school in a joint lawsuit. After public outcry, Christ the King Parish School quickly rescinded the controversial new policy banning hair extensions, and the school's pastor welcomed both girls to return.

However, much of the vague, exclusionary language often used against Black hairstyles—hair "should not interfere with the learning process," or be "faddish" or "inappropriate," and should be "neat, clean, conservative" and "conventional"—remains in the school's dress code.

IN THIS ARTICLE, "Black hair" refers to naturally curly- or coily-textured hair as well as traditional Black hairstyles such as locs, braided extensions, twists, and fades. The unique texture of natural Black hair has always allowed it to be sculpted and molded in a way that hair of other textures could not replicate, intensifying the significance of hair to Black culture. For example, in various parts of Africa, hairstyle can be a symbol of status, age, marriage, religion, or class.

During the slave trade, European colonizers in the United States recognized the centrality of hair to Black cultures and subverted it. Slave owners routinely shaved enslaved Africans' hair in attempts to strip them of their cultural identity and humanity. The American lexicon adopted rhetoric used to demonize black hair, including "nappy," "wooly like fur," and "coarse." The idea of "good hair" was propagated to uphold a Eurocentric standard of beauty and to form a rift within the Black community. This rift dates back to slavery and is tied to the development of colorism on plantations. Indeed, straighter hair emulated whiteness—and was therefore *better*. Enslaved people who worked in fields often had darker skin and tighter curl textures, and they were forced to shave or cover their hair because slave owners deemed it "offensive" and "unpresentable." Enslaved people who worked in houses usually had lighter skin and looser curl textures because they were born from white masters and enslaved Black women. Their looser curl textures made their hair more "presentable" because it was associated with their relative whiteness. White masters created this dichotomy between lighter skin Black people with "good" hair and darker skin Black people with "bad" hair.

These practices, rooted in colorism on plantations, contributed to a trend in the 19th century's beauty industry to create products that "fixed" Black beauty problems. By the late 1800s and early 1900s, the Black beauty industry was booming. Major figures like Madame CJ Walker, the first female self-made millionaire in the United States, and Anna Turbo Malone, another prominent millionaire who gave Walker her start in the hair care industry, rose to prominence. Inventions such as the straightening comb and chemical straightening hair care lines made straight hair more accessible and safer to achieve for Black women, who previously relied on lye-based straightening techniques that burned the scalp. Until the 1960s, straightening natural Black hair, even for young children, was normalized.

Thus, even in the era of school desegregation following *Brown v. Board of Education*, which emphasized the inherent equality of races, the Black beauty industry was developed around helping Black women emulate whiteness.

In the '60s and '70s, Black natural hair was rapidly politicized and associated with Black power and freedom movements. Think Cicely Tyson, Angela Davis, Jimi Hendrix, and Jesse Jackson. Afros, cornrows, and locs grew in popularity throughout the African Diaspora. These new conceptions of natural hair were influenced by prominent moments and actors in civil rights and Black activism history such as the Civil Rights Act of 1964, the Supreme Court's *Regents of the University of California v. Bakke* decision upholding affirmative action, Martin Luther King Jr.'s assassination, the Black Panther Party, the Combahee River Collective, and the Student Nonviolent Coordinating Committee.

HOWEVER, IN THE 1980s, American society at large reverted to old racist stereotypes of natural hair. Chemical straighteners and permed styles like the Jheri curl rose in popularity. Then, Black protective hairstyles like locs and braids—which are culturally significant and practical—became increasingly disparaged across the country. Administrators and employers deemed Black hair "unprofessional." School policies banning and demeaning Black hair as "inappropriate" and a "signal of gang affiliation" were on the rise.

From the 1990s onwards, although Black natural hair was often still marginalized, the natural hair movement began to grow again among Black people in the United States and especially among Black women. The decade marked the rise of terms like "going natural." The internet and, eventually, social media played a significant role in developing a global community of natural hair bloggers who shared their hair experiences and demonstrated natural hair "how-tos." Famous Black artists and actors began using their platform to talk about natural hair and show their own; while movies and music like Spike Lee's *School Daze* (1988), Chris Rock's *Good Hair* (2009), Regina Kimbell's *My Nappy Roots: A Journey Through Black Hair-itage* (2010), and Solange's "Don't Touch My Hair" (2016) made conversations about natural hair accessible to a wide audience.

TODAY, ALTHOUGH THE MOVEMENT to embrace natural Black hair is growing rapidly and spreading awareness of the discriminatory societal norms constructed against Black hair, policies that explicitly ban Black hairstyles from schools and workplaces continue to hurt Black people across the country. These policies have existed for decades, but social media has made instances of discrimination more visible.

Take Fennidy, who faced discrimination for her box braids last fall. Box braids protect hair from constant manipulation, which is especially important because curly hair tends to be dry and prone to split ends and breakage. Protective styling like box braids also saves the hours that washing curly hair can take—or, as some say, "wash days." When Fennidy was first disciplined for her hairstyle, her mother took her to get box braids done, a style that can cost between 100 and 200 dollars. The school first failed to recognize the financial burden of making Fennidy restyle her hair and additionally failed to appreciate the practicality of her new hairstyle.

In May 2017, 17-year-old Jenesis Johnson at North Florida Christian High School was subject to new, discriminatory hair policies like those Fennidy faced. After wearing her hair in an afro at the school on and off for years and daily for seven months, Johnson suddenly received frequent questioning from a teacher, who interrogated her about her hair and subsequently sent her to the assistant



> “The Black beauty industry was developed around helping Black women emulate whiteness”

principal’s office. There, the assistant principal told Johnson that her hair was “inappropriate,” in need of being “fixed” and “in a style,” “not neat,” “extreme and faddish and out of control,” and “all over the place.” Furthermore, Johnson was told that while she could finish the last week of school with her afro, she would be allowed back at the school in the fall only if she changed her hair.

Sudden changes in school policies are a common form of discrimination against Black hair. In June 2013, Horizon Science Academy, a public charter school in Lorian, Ohio, banned Black hairstyles such as “afro-puffs”—essentially a ponytail for anyone with curly hair—and “small twisted braids” in the school’s new dress code policy, which was quickly revised due to backlash.

In September 2014, a Black student with dreadlocks at South Plaquemines High School in Louisiana was told by administrators that he could not return to school “as long as his hair remains in dreadlocks,” which were considered too long for a boy’s hair. The discipline occurred even though administrators were aware of the student’s Rastafarian religion, which requires men to not cut their hair and to wear it in long dreadlocks. In December 2018, social media erupted after Andrew Johnson, a Black high school varsity wrestler from Buena Regional High School in New Jersey, was forced by a referee with a history of alleged racist behavior to cut his already-short dreadlocks or forfeit a wrestling match. The referee claimed Johnson’s hair length and head gear were against the rules, despite the fact that Johnson had played with dreadlocks in the past. No coaches, teammates, or adults from the crowd stepped in to defend him before someone cut off his hair to continue the match.

Some schools have policies that explicitly ban Black hairstyles. In August 2013, seven-year-old Tiana Parker had her hair in dreadlocks, which school administrators at Deborah Brown Community School, a public charter school in Tulsa, Oklahoma, told her were not “presentable” and would “distract from the respectful and serious atmosphere [the school] strives for.” The school’s dress code specifically stated that traditional Black hairstyles such as “dreadlocks, afros, mohawks, and other faddish styles are unacceptable.” Other schools’ policies don’t explicitly ban Black hairstyles, but rather implicitly do so by demanding straight hair. Amber Young, a current sophomore at Yale University from Hamden, Connecticut, has been cheerleading for years. Both in high school and when she first came to Yale, cheerleading coaches “required that every cheerleader’s hair be fully blown out and straightened so that [they] all looked ‘uniform.’” However, in doing so they “implicitly stated that natural hair is not allowed while wearing a cheer uniform,” Young says. In practice, the policy required Black girls, especially those with tighter curl types, to spend significant amounts of time straightening their hair weekly.

EVEN SCHOOLS THAT DO NOT have policies against Black hair can also contribute to a hostile environment that harms Black students wearing natural or traditional hairstyles. Anna McNeil, a current junior at Yale University, went to a predominantly white private high school in New York. During her senior year there, her white female music teacher began petting her hair and said, "Wow! It feels like a poodle!" When McNeil was clearly uncomfortable, her teacher proceeded to say, "I just wonder what it's like to have interesting hair."

In June 2010, an eight-year-old Black girl at Thurgood Marshall Elementary School in Seattle, Washington was removed from her classroom without communication to her parents because the smell of her hair product—made by ORS, a popular natural hair company—made her teacher "sick."

This year, Eduardo Leal, a current sophomore at Yale from Belo Horizonte, Brazil, began "transitioning" to natural hair. "Transitioning" is a term used to describe when Black people stop using heat or chemicals to straighten their hair and instead wear it in its natural state. Although he has only worn his hair without it being flat-ironed twice this semester, once "a 'friend' just laughed" and another said that his hair had "exploded."

In December 2014, five-year-old Jalyn Broussard and his parents in Belmont, California were told by his kindergarten teacher in front of his entire class that his hair was inappropriate and distracting to other students, even though Jalyn had a similar haircut to many of his white classmates. The examples go on.

When schools do have codified, discriminatory hair policies, those rules represent a small but effective way to criminalize the Black body, further school pushout, and say, "Your appearance is more important than your education." It has been well researched that all Black children are subject to school discipline at much higher rates than their peers. According to a 2018 study published by the U.S. Government Accountability Office, Black students only make up 15.5 percent of all public school students but make up around 39 percent of public school students suspended from school; they are even more overrepresented in suspensions at magnet and charter schools. In fact, Black students are overrepresented in all types of discipline, including out-of-school suspensions, in-school suspensions, referral to law enforcement, expulsion, corporal punishment, and school-related arrest, according to the GAO Report. Furthermore, in 2018, the National Women's Law Center published "DRESS CODED: Black girls, bodies, and bias in D.C schools." The report, co-authored by 21 Black girls currently in D.C. public schools, reveals that Black girls in



D.C. are 20.8 times more likely to be suspended than white girls. Moreover, 74 percent of D.C. public high school dress codes—in which rules about hair are often written—allow for disciplinary action that could lead to missed class or school, despite D.C. Public Schools policy forbidding suspensions for dress code violations.

Finally, chemically straightened Black hair is a major health risk. Frequent use of chemical relaxers—which have toxic ingredients like sodium hydroxide and calcium hydroxide—has been linked to scalp lesions and burns, increased risk of uterine fibroids, and possible injury to the mouth and esophagus if ingested. Databases such as the Environmental Working Group's Skin Deep Cosmetic Database for Black Hair Care place hair relaxers anywhere from 4 to 10 on a scale of least hazardous (1) to most hazardous (10). To some extent, Black consumers are becoming more aware of these risks, and according to Mintel, a market intelligence agency, hair relaxer sales have dropped 36 percent from 2012 to 2017. But school dress code policies that ban natural hair and demand "neatness" and school sports policies that require straight hair in the name of uniformity only encourage Black people to reach for relaxers—despite blatant health risks—because they can create the desired straight, Eurocentric look for longer periods of time.

Hair management is also seen as a barrier to physical exercise among many Black people, especially Black women. In a 2014 paper in the *Journal of Clinical and Aesthetic Dermatology*, Black women with straightened hair textures reported that their hair care regimens—whether flat ironing, regular salon visits, or chemical relaxers—were a deterrent from physical exercise, since they feared their sweat would mess up their hair. In a study cited by the paper, nearly 40 percent of Black women had avoided exercise due to hair care concerns, which is especially worrying when coupled with the fact that 78.2 percent of Black women above the age of 20 are overweight.

THERE HAS BEEN MORE positive work done around natural Black hair, but primarily only within the last decade. In February 2017, The Perception Institute conducted "The 'Good Hair' Study," which illuminated the explicit and implicit bias against Black women with natural hair in a variety of settings including academia, the workplace, and romantic relationships. In February 2019, the New York Commission on Human Rights issued a

guidance stating that the New York City Human Rights Law "protects the rights of New Yorkers to maintain natural hair or hairstyles that are closely associated with their racial, ethnic, or cultural identities"; the guidance continues to specifically cite the right that Black people have to wear styles like "locs, cornrows, twists, braids, Bantu knots, fades, [and] Afros."

EVEN AFTER READING how hair has been a crucial yet demeaned aspect of Black culture for centuries, some might ask why school administrators need to familiarize themselves with this information and act on it. To that I ask, why would you make policies that ban or demean hairstyles you know nothing about if you're not acting on the deep-rooted assumptions that Black hair is "nappy," "faddish," "distracting," "unpresentable," "not neat," "unprofessional," "inappropriate," or just "bad"? These policies grounded in racism persecute Black youth and question whether they are worthy of respect and education.

I am not arguing that any Black person who doesn't wear their hair in a traditional Black hairstyle or in its natural state is trying to assimilate to unjust Eurocentric beauty standards. That argument has been made for years in- and outside the Black community. Plenty of Black people like wearing their hair straight because they just like the way it looks or because they're wearing straight weaves or wigs to protect their natural hair underneath.

I am saying that school policies and microaggressions reinforce the idea that Black hair, as it naturally grows and as it has historically been styled, is "bad" because it's not white enough—and that those policies are part of a nationwide anti-Blackness problem. It goes beyond hair when across the country, school policies use the same language and reasoning to ban Black hairstyles. It goes beyond hair when these policies are grounds for discipline or removal from school entirely. It goes beyond hair when getting an education requires you to have "good" straight hair that comes at the cost of your health.

These policies and cultures of behavior surrounding Black hair have serious implications for Black health, Black educational access, Black self-love, and Black lives. For schools to recognize that their policies and behaviors around Black hair continue to uphold whiteness as the standard of all things good and beautiful—and then make a change—would be to hold themselves accountable for their anti-Blackness.















AN INTERVIEW WITH LUIS ALMAGRO, SECRETARY GENERAL OF THE ORGANIZATION OF AMERICAN STATES

By **JORGE FAMILIAR AVALOS**

THE ORGANIZATION OF AMERICAN STATES is a regional body with 35 member states, headquartered in Washington, D.C., that seeks to promote democracy, peace, and security across the Americas. Luis Almagro, who served as Minister of Foreign Affairs of Uruguay from 2010 to 2015, has been its Secretary General since May 2015.

What options exist to improve conditions in Venezuela? What would you suggest?

The redemocratization of the country. As long as these people govern, there will be no fix. It is impossible. Maduro rules an absolutely delegitimized government: delegitimized by its population, delegitimized by its political system, delegitimized from the institutional point of view, and delegitimized among the international community. It is a government without options and without the capacity to generate the solutions that its people need.

This government, this dictatorship, this Venezuelan regime, has shown itself to be completely alien to the country's problems. People die because they cannot get dialysis, and there is no government attempt to solve that. People die because they have other chronic diseases, and there is no official reaction. Children die in hospitals, practically one per day, and there is no reaction.

Imagine this in any other country on the continent. This sort of thing makes governments fall and sparks social protest. This is a completely oppressed society, on which an induced humanitarian crisis has been leveraged. The only measure this government has to relieve internal pressure is to make people leave. The government transfers its problems to all the other countries of the region, practically making it one of the most immoral governments in history. Almost no dictatorship on the continent has had such a detachment from the social problems of its country. And there have been horrible dictatorships on our continent.

So, the solution must pass through a legitimate and democratic government in Venezuela. Everything else is a palliative. Everything we can do to assist migrants and resolve specific issues—education, health, housing, and security—are palliatives for a situation generated by a dictatorship on the continent.

In the last days of 2018, you announced the application of the Democratic Charter of the OAS to Nicaragua. What does this imply? In your opinion, is Nicaraguan President Daniel Ortega following in the footsteps of Maduro?

He is throwing himself off the same precipice from which Maduro threw himself. This was something unnecessary for Ortega, but he chose that path and sent

himself off that precipice. That is why, according to what Article 20 of the Charter itself says, when an alteration to the constitutional order is violated by one of the countries or by the General-Secretariat itself, action has to be taken. When we consider all the violations of these constitutional principles by the Ortega government, we definitely have to start the path of applying the Democratic Charter.

The process of implementing the Democratic Charter is not as simple as some people believe. The application of the Charter does not imply the suspension of the country [from the OAS]. If we look at Article 20, there are five steps before that suspension occurs: a summoning request, a meeting of the Permanent Council, the collective resolution on the part of the states with respect to the situation in the country in question, the making of the decisions that the countries deem necessary, and the realization of diplomatic procedures and best efforts. And if all that fails, the last point is to call an [Extraordinary General Meeting] to deal with the suspension of the country, or to generate another type of solution. It is how irreversible [the situation in Nicaragua] has become over the last few months that forces us to take this path, hoping that the solution for Nicaragua will be political and diplomatic.

According to the Latinobarómetro Report of 2018, support for democracy in Latin America fell for the sixth consecutive year and citizen dissatisfaction with the democratic system reached 71 percent, compared to 51 percent in 2009. Is distrust of democracy the greatest challenge facing Latin America?

It is not a problem of distrust in democracy. It is a problem of inefficiency. When democracy is missing, people get sick, the demands get stronger, and despair and protest are transformed into something very severe. The cases of Venezuela and Nicaragua are very demonstrative in this regard.

The problem that democracy has on the continent today is that many of our political systems and our political parties have not managed to fully exit the 20th century. They continue proposing, as we approach the end of the second decade of the 21st century, the same solutions from the 20th century. And today, that is very inefficient.

So, if our institutions are not more efficient when it comes to resolving issues of corruption, environmental issues, economic issues, labor issues, education issues... that will definitely continue to impact levels of confidence in the functioning of the political system, which, in practically all parts of the continent, is democracy. Our institutions must take a step to update themselves, to solve [problems] in real time, [in order to] shape public opinion and address the needs of their people.

Before, a politician in the 20th century could wait to be judged at the end of his term, which is now an absolute impossibility. Today, the politician is judged immediately: he is judged by something he has just done or by something he did not yet do.

That is the fundamental issue: the efficiency of institutions, the efficiency of politicians, and the efficiency of political parties. That is the issue that must be resolved to restore confidence in democracy. If the criteria [for judging politicians] will continue to be those of the 20th century, the times will remain those of the 20th century, the politicians will continue to be those of the 20th century, and the confidence of the people [in democracy] will continue to fall next year.

"The problem that democracy has on the continent today is that many of our political systems and our political parties have not managed to fully exit the 20th century."

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